TITLE 8 - GENERAL PROVISIONS

CHAPTER 1 - COMMON LAW, STATUTES AND RULES OF CONSTRUCTION

8-1-101. Adoption of common law.

The common law of England as modified by judicial decisions, so far as the same is of a general nature and not inapplicable, and all declaratory or remedial acts or statutes made in aid of, or to supply the defects of the common law prior to the fourth year of James the First (excepting the second section of the sixth chapter of forty-third Elizabeth, the eighth chapter of thirteenth Elizabeth and ninth chapter of thirty-seventh Henry Eighth) and which are of a general nature and not local to England, are the rule of decision in this state when not inconsistent with the laws thereof, and are considered as of full force until repealed by legislative authority.

8-1-102. Definitions.

(a) As used in the statutes unless the legislature clearly specifies a different meaning or interpretation or the context clearly requires a different meaning:

(i) "Adult" means a person who is not a minor;

(ii) "Bond" includes an undertaking;

(iii) When used in a context denoting age:

(A) "Majority" means that period of time when a person is an adult;

(B) "Minor" means a person who has not yet reached the eighteenth anniversary of his birth;

(C) "Minority" means that period of time when a person is a minor.

(iv) "Month" means a calendar month, and "year" means a calendar year; the word "year" is equivalent to the words, "year of our Lord";

(v) "Oath" includes affirmation;

(vi) "Person" includes an individual, partnership, corporation, joint stock company or any other association or entity, public or private;

(vii) "Preceding" and "following," when referring to sections in statutes, mean the sections next preceding or next following that in which the words occur, unless some other section is designated;

(viii) "Will" includes the words "testament" and "codicil";

(ix) "Written" and "in writing" include printing, lithographing or other modes of representing words and letters, but in all cases if the written signature of any person is required the proper handwriting of that person, or his mark, is intended;

(x) "District attorney" includes a county and prosecuting attorney in a county where the office of district attorney has not been created. This definition shall specifically not apply to W.S. 9-1-801 through 9-1-811;

(xi) "State penal institution" includes the Wyoming state penitentiary, Wyoming state penitentiary farms and camps, Wyoming women's center, Wyoming correctional facility, community correctional facilities defined by W.S. 7-18-102(a)(i) and any other state penal institution created by law for the incarceration of convicted felons;

(xii) "Elected state official" means the governor, secretary of state, state auditor, state treasurer and superintendent of public instruction;

(xiii) "Intellectual disability" means significantly subaverage general intellectual functioning with concurrent deficits in adaptive behavior manifested during the developmental period. "Intellectually disabled" means a person with an intellectual disability;

(xiv) "Notarial officer" means a notary public or other officer authorized to perform notarial acts as defined in W.S. 32-3-102(a)(xviii);

(xv) "Last federal census" means the last official federal decennial census as conducted and officially corrected by the bureau of census, including any changes for boundary

modifications, to become effective on July 1 next following the receipt of the official census figures;

(xvi) "Population" of a city, town, county, legislative district or other political subdivision shall be determined by resort to the last federal census;

(xvii) Repealed by Laws 2025, ch. 9, § 2.

(xviii) "Personal digital identity" means the intangible digital representation of, by and for a natural person, over which he has principal authority and through which he intentionally communicates or acts;

(xix) "Organizational digital identity" means the intangible digital representation of, by and for a corporation, business trust, estate, trust, partnership, limited liability company, association, joint venture, governmental agency, public corporation or any other legal or commercial entity that is not a natural person, over which it has principal authority and through which it intentionally communicates or acts;

(xx) "Honorable discharge" or "honorably discharged," for purposes of law providing Wyoming benefits or exemptions, shall include any veteran of the United States armed forces or national guard whose discharge was general or other than honorable solely as a result of having refused a vaccine for COVID-19 as defined in W.S. 1-1-141(a)(ii).

(xxi) "Armed forces" means the army, navy, air force, marine corps, space force and coast guard;

(xxii) "Uniformed services" means all of the following:

(A) The armed forces;

(B) The commissioned corps of the national oceanic and atmospheric administration;

(C) The commissioned corps of the public health service;

(D) Any other category of persons designated by the president of the United States in time of war or emergency.

8-1-103. Rules of construction for statutes.

(a) The construction of all statutes of this state shall be by the following rules, unless that construction is plainly contrary to the intent of the legislature:

(i) Words and phrases shall be taken in their ordinary and usual sense, but technical words and phrases having a peculiar and appropriate meaning in law shall be understood according to their technical import;

(ii) Words importing joint authority to three (3) or more persons shall be construed as authority to a majority of those persons, unless otherwise declared in the law giving the authority;

(iii) Reference to a numbered section, subsection, paragraph, subparagraph or other subdivision "of the statutes" and the abbreviation "W.S." when used in conjunction with a statute section number or its designation or identification means the Wyoming Statutes in their most recently published form including amendments to original enactments;

(iv) Words in the present tense include the future tense;

(v) Words in the plural form include the singular and words in the singular form include the plural;

(vi) Words in the masculine gender include the feminine and neuter genders;

(vii) Any uniform act shall be interpreted and construed to effectuate its general purpose to make uniform the law of those states which enact it;

(viii) If any provision of any act enacted by the Wyoming legislature or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the act which can be given effect without the invalid provision or application, and to this end the provisions of any such act are severable;

(ix) Reference to legislative salary, per diem or compensation in any statute establishing the amount of salary, per diem or compensation to be paid a person who is not a legislator, shall be deemed a reference only to the rate of legislative salary, per diem or compensation set by statute and

shall not be construed to authorize the payment of salary for meeting preparation days as provided for legislators under W.S. 28-5-101(e)(iii) or the payment of salary for travel days provided for legislators under W.S. 28-5-101(e)(iv);

(x) Reference to the "cooperative tribal governing body" means the inter-tribal council of the Eastern Shoshone and Northern Arapaho tribes or its official successor joint governing body. If the cooperative tribal governing body is a party to a cooperative agreement or contract with the state or a political subdivision under the laws of this state, a successor joint tribal governing body or each tribe as an individual sovereign shall remain a party to the agreement or contract unless specified otherwise in the agreement or contract.

8-1-104. Identification of laws amended or repealed in amending or repealing acts.

In amending, altering or repealing any of the laws of Wyoming, it is sufficient to identify each of the laws to be so amended, altered or repealed by designating the particular section, subsection, paragraph, subparagraph or other subdivision of the statutes affected by the appropriate number or letter, or by the appropriate chapter and section of a session law if the law to be amended, altered or repealed is not a numbered statute, and it is not necessary to refer by title or otherwise to the original legislative enactment, or amendment thereof, to be so affected. Each bill for an act to amend, alter or repeal any laws in effect, but not yet published, shall refer to the laws by their title and the date of approval by the governor. Nothing in this section shall be construed as altering any rule or requirement that any portion of an enactment being amended shall be set forth in full.

8-1-105. Identification and designation of sections, subsections and other divisions of bills; duty to insert; method.

(a) Each section, subsection, paragraph, subparagraph, indented clause or other subdivision of every bill for any act, memorial or resolution which may be introduced in either house of the legislature shall be appropriately and systematically identified and designated by number or letter before the bill is introduced. The legislative service office shall select and insert the identification and designation numbers and letters, whenever needed. In arranging and furnishing copies of the laws passed at each session of the legislature for the printer of the

session laws or the Wyoming statutes, the legislative service office shall select and insert the appropriate and systematic identification and designation numbers and letters.

(b) If any bill is for amendment of a prior enactment in which sections, subsections, paragraphs, subparagraphs and other subdivisions are appropriately identified and designated according to a consistent pattern or system, the identification and designation of portions of the bill may conform to that pattern or system, but otherwise shall be accomplished in accordance with the following rules, as nearly as practicable:

(i) The first or only section in a bill shall be identified as section 1, and any following sections shall be identified by Arabic numerals in sequence;

(ii) Statute sections within a bill shall be identified by the appropriate title, chapter and section number as: 8-1-105;

(iii) Subsections (divisions of sections) shall be identified by lower case letters in parentheses as: (a), (b), (c), etc.;

(iv) Paragraphs (divisions of subsections) shall be identified by lower case Roman numerals in parentheses, as: (i), (ii), (iii), etc.;

(v) Subparagraphs (divisions of paragraphs) shall be identified by upper case letters in parentheses, as: (A), (B), (C), etc.;

(vi) Subdivisions of subparagraphs shall be identified by upper case Roman numerals in parentheses, and any smaller subdivisions shall be identified in accordance with the pattern and system established by this subsection, again starting with Arabic numerals.

(c) The legislative service office may also insert appropriate statute section numbers and section headnotes in a bill for an act. However, statute numbers and headnotes are for reference, identification, and to facilitate preparation of copy for printing only, and do not constitute any part of the substantive law of the enactment. The legislative service office may change statute section numbers or headnotes before or after passage of the act as necessary to correct errors or conform

statute numbers or headnotes to reflect amendments made by the legislature to the text of the bill.

8-1-106. Effect of repeal of repealing law.

If any law is repealed which repealed a former law, the former law is not thereby revived unless it is expressly provided.

8-1-107. Effect of amendment or repeal on pending actions.

If a statute is repealed or amended, the repeal or amendment does not affect pending actions, prosecutions or proceedings, civil or criminal. If the repeal or amendment relates to the remedy, it does not affect pending actions, prosecutions or proceedings, unless so expressed, nor shall any repeal or amendment affect causes of action, prosecutions or proceedings existing at the time of the amendment or repeal, unless otherwise expressly provided in the amending or repealing act.

8-1-108. When laws take effect.

Every law takes effect ninety (90) days after the adjournment of the session of the legislature at which it was enacted, unless a different effective date is specified therein.

8-1-109. Payment of fines and penalties.

Unless otherwise specifically provided by law, all civil or administrative fines or penalties collected under the Wyoming statutes shall be paid over to the state treasurer to be credited to the public school fund of the county in which the violation for which the fine or penalty was imposed occurred.

8-1-110. References to males and females; separate accommodations for males and females; data reporting requirements.

(a) Notwithstanding any other provision of law, with respect to the application of a person's biological sex under any law or rule and regulation in this state, the following definitions and standards shall apply:

(i) A person's "sex" means the person's biological sex, either male or female, at birth;

(ii) "Female" means a person who has, had, will have or would have had, but for a congenital anomaly or intentional

or unintentional disruption, the reproductive system that at some point produces, transports and utilizes eggs for fertilization;

(iii) "Male" means a person who has, had, will have or would have had, but for a congenital anomaly or intentional or unintentional disruption, the reproductive system that at some point produces, transports and utilizes sperm for fertilization;

(iv) The terms "woman" and "girl" refer to human females, and the terms "man" and "boy" refer to human males;

(v) "Mother" means a parent of the female sex;

(vi) "Father" means a parent of the male sex;

(vii) With respect to biological sex, the term "equal" does not mean "same" or "identical";

(viii) With respect to biological sex, separate accommodations are not inherently unequal; and

(ix) A person born with a medically recognized condition of a disorder or difference in sex development shall not be denied legal protections and accommodations afforded under applicable law.

(b) The legislature finds that laws, rules and regulations that distinguish between the sexes are subject to intermediate constitutional scrutiny. Intermediate constitutional scrutiny forbids unfair discrimination against similarly situated male and female persons but allows the law to distinguish between the sexes where such distinctions are substantially related to important governmental objectives.

(c) Notwithstanding any provision of law to the contrary, laws, rules and regulations that recognize or enforce distinctions between the sexes with respect to athletics, prisons or other detention facilities, domestic violence shelters, rape crisis centers, locker rooms, restrooms and other areas where safety or privacy are implicated and that result in separate accommodations between the sexes are substantially related to the important governmental objectives of protecting the health, safety and privacy of persons in such circumstances.

(d) Any school district, or public school thereof, and any state agency, department, office or other political subdivision that collects vital statistics for the purpose of complying with anti-discrimination laws or for the purpose of gathering accurate public health, crime, economic or other data shall, when identification by sex is used, identify each person who is part of the collected data set as either male or female consistent with the person's sex at birth.

CHAPTER 2 - STATUTES, SUPPLEMENTS, SESSION LAWS AND WYOMING DIGEST

ARTICLE 1 - STATUTES, SUPPLEMENTS AND SESSION LAWS

8-2-101. Distribution of statutes, supplements and session laws.

(a) Statutes, supplements and session laws shall be distributed as provided by contract with the publisher or as directed by the management council, to the following, without charge:

(i) Nine (9) copies to the county clerk of each county in Wyoming, for use in the county offices and the district court, plus one (1) additional copy for each magistrate serving pursuant to W.S. 5-9-206 and circuit judge in each county;

(ii) One (1) copy to each member of the Wyoming legislature;

(iii) One (1) copy to the office of each United States senator and the congressman from Wyoming;

(iv) One (1) copy to each judge of the district court of Wyoming;

(v) One (1) copy to each justice of the Wyoming supreme court;

(vi) One (1) copy to each of the five (5) elected state officers;

(vii) One (1) copy each to the house and senate chief clerks; and

(viii) One (1) copy to the principal county library in each county for use therein.

(b) Except as provided in subsection (a) of this section, all copies of the statutes, supplements and session laws shall be sold and distributed by the publisher as contracted for by the management council.

(c) Except for the distribution of sets of the Wyoming statutes to newly elected legislators, the distribution provided by subsection (a) of this section applies to statutes, supplements and session laws published hereafter, and does not require the distribution of additional free copies of publications already distributed.

ARTICLE 2 - WYOMING DIGEST

8-2-201. Repealed by Laws 1993, ch. 146, § 4.

8-2-202. Repealed by Laws 1993, ch. 146, § 4.

CHAPTER 3 - STATE SEAL, FLAG, FLOWER, BIRD AND OTHER SYMBOLS

8-3-101. Great seal of the state of Wyoming.

There shall be a great seal of the state of Wyoming, which shall be of the following design, viz: A circle one and one-half (1 1/2) inches in diameter, on the outer edge or rim of which shall be engraved the words "Great Seal of the State of Wyoming." The design shall conform substantially to the following description: A pedestal, showing on the front thereof an eagle resting upon a shield, the shield to have engraved thereon a star and the figures, "44," being the number of Wyoming in the order of admission to statehood. Standing upon the pedestal shall be a draped figure of a woman, modeled after the statue of the "Victory of the Louvre," from whose wrists shall hang links of a broken chain, and holding in her right hand a staff from the top of which shall float a banner with the words "Equal Rights" thereon, all suggesting the political position of woman in this state. On either side of the pedestal and standing at the base thereof, shall be male figures typifying the livestock and mining industries of Wyoming. Behind the pedestal, and in the background, shall be two (2) pillars, each supporting a lighted lamp, signifying the light of knowledge. Around each pillar shall be a scroll with the following words thereon: On the right of the central figure the words "Livestock" and "Grain," and on the left the words "Mines"

and "Oil." At the base of the pedestal, and in front, shall appear the figures "1869-1890," the former date signifying the organization of the territory of Wyoming and the latter the date of its admission to statehood.

8-3-102. Adoption, use and specifications of state flag; penalty for misuse.

(a) A state flag is adopted to be used on all occasions when the state is officially and publicly represented. All citizens have the privilege of use of the flag upon any occasion they deem appropriate. The width of the flag shall be seven-tenths (7/10) of its length; the outside border shall be in red, the width of which shall be one-twentieth (1/20) of the length of the flag; next to the border shall be a stripe of white on the four (4) sides of the field, which shall be in width one-fortieth (1/40) of the length of the flag. The remainder of the flag shall be a blue field, in the center of which shall be a white silhouetted buffalo, the length of which shall be one-half (1/2) of the length of the blue field; the other measurements of the buffalo shall be in proportion to its length. On the ribs of the buffalo shall be the great seal of the state of Wyoming in blue. The seal shall be in diameter one-fifth (1/5) the length of the flag. Attached to the flag shall be a cord of gold with gold tassels. The same colors shall be used in the flag, red, white and blue, as are used in the flag of the United States of America.

(b) All penalties provided by the laws of this state for the misuse of the national flag are applicable to the state flag.

8-3-103. State historian to purchase state flags; use.

It is the duty of the state historian to purchase not less than six (6) state flags. The flags shall be kept at the office of the state historian to be loaned under rules and regulations he prescribes to any citizen, or group of citizens, of the state for use on such occasions when the state is officially and publicly represented, or when public assemblies or gatherings are held. If any flag is borrowed from the office of the state historian, the citizen, or group of citizens, borrowing the flag shall deposit with the state historian a certified check in an amount sufficient to repair or replace the flag, if damaged or lost. No deposit is required of any officer of the state government who may be called upon to represent the state at any official function.

8-3-104. State flower.

The Castillija linariaefolia, commonly called "the Indian paint brush," is the state flower of Wyoming.

8-3-105. State bird.

An American icteroid bird (genus Sturnella), the bird commonly known as the meadowlark, is the state bird of Wyoming.

8-3-106. State tree.

The Populus Sargentii commonly called cottonwood tree, is the state tree of Wyoming.

8-3-107. State motto.

The motto "Equal Rights," as it exists on the great seal of the state of Wyoming, is the official motto of Wyoming.

8-3-108. State songs.

The march song entitled "Wyoming," words by Charles E. Winter and music by George E. Knapp, and the song entitled "Wyoming Where I Belong," words and music by Annie Smith and Amy Smith, are the official state songs of Wyoming.

8-3-109. State stone.

Jade is the official gemstone of Wyoming.

8-3-110. Flag code for Wyoming.

(a) The Federal Flag Code, P.L. 94-344, as enacted by the United States Congress on July 7, 1976, is adopted as the flag code for the state of Wyoming.

(b) In addition to specified dates for display of the flag, authorized by Section 2(d) of P.L. 94-344, the United States flag may be displayed in this state on Wyoming Day, December 10, and on July 10, the day Wyoming was admitted to the Union.

8-3-111. State mammal.

The Bison bison, commonly called the American bison or buffalo, is the state mammal of Wyoming.

8-3-112. State fossil.

The fossilized fish Knightia is the state fossil of Wyoming.

8-3-113. State fish.

The Salmo clarki, commonly known as the cutthroat trout, is the state fish of Wyoming.

8-3-114. State territorial flag.

(a) The state territorial flag shall be a flag with a field of blue, the name "WYOMING" printed across the top of the flag and the phrase, "CEDANT ARMA TOGAE" printed across the bottom of the flag. In the center of the flag shall be a shield with a border of gold divided into three (3) parts:

(i) The top half of the shield shall have the numbers "1869" across the top and depict mountains and a train;

(ii) The lower left part of the shield shall depict a staff, shovel, plow and pick; and

(iii) The lower right part of the shield shall depict an arm and hand holding a sword.

(b) The provisions of W.S. 8-3-102(a) on the display and use of the state flag shall be applicable to the display and use of the state territorial flag.

8-3-115. State reptile.

The eastern short-horned lizard (Phrynosoma douglassi brevirostre (Girad)) commonly known as the horned toad, is the state reptile of Wyoming.

8-3-116. State dinosaur.

A state dinosaur shall be designated by election in accordance with law. The results of the election naming the state dinosaur shall be filed with the secretary of state.

8-3-117. "Bucking Horse and Rider" and related trademarks.

(a) The secretary of state shall promulgate rules regulating the licensing or other authorized use of the "Bucking Horse and Rider" and related trademarks.

(b) Any licensing fees, royalties or other revenues collected by the secretary of state under this section shall be deposited into a separate account. The legislature shall by appropriation authorize expenditures from the account as necessary to defray administrative expenses associated with licensing of the trademark and expenditures required to protect, preserve and promote the "Bucking Horse and Rider" and related trademarks on behalf of the state.

8-3-118. POW/MIA flags.

(a) The National League of Families POW/MIA flag, recognized by the United States Congress in P.L. 101-355 and other federal laws, is authorized and shall continue to be displayed directly beneath the national flag on state capitol grounds. All other state leased or owned buildings and offices that fly the national flag may also fly the POW/MIA flag directly beneath the national flag on any day upon which the national flag is displayed. Any state agency, board or commission having authority for the supervision, control or management of a state leased or owned building or office is authorized to adopt rules relating to the display of the POW/MIA flag at the state leased or owned building or office pursuant to this section.

(b) Any county, city, town or political subdivision of the state may display the POW/MIA flag directly beneath the national flag on any day upon which the national flag is displayed.

(c) All protocols used in displaying national flags shall be used in displaying the POW/MIA flag. All penalties provided by the laws of this state for the misuse of the national flag are applicable to the POW/MIA flag.

(d) Nothing in this section shall be construed to require the acquisition, erection and maintenance of a flagpole or the display of the POW/MIA flag where a pole or display of the national flag does not already exist.

8-3-119. Rodeo as the state sport.

Rodeo is hereby designated the official state sport of Wyoming.

8-3-120. State coin.

The Sacajawea golden dollar coin is the state coin of Wyoming.

8-3-121. State grass.

The Agropyron smithii (Pascopyrum smithii), commonly known as western wheatgrass, is the state grass of Wyoming.

8-3-122. State insect

Callophrys sheridanii, commonly known as Sheridan's green hairstreak butterfly, is the state butterfly of Wyoming.

8-3-123. State code.

(a) The code of the west, as derived from the book, Cowboy Ethics by James P. Owen, and summarized as follows, is the official state code of Wyoming. The code includes:

(i) Live each day with courage;

(ii) Take pride in your work;

(iii) Always finish what you start;

(iv) Do what has to be done;

(v) Be tough, but fair;

(vi) When you make a promise, keep it;

(vii) Ride for the brand;

(viii) Talk less, say more;

(ix) Remember that some things are not for sale;

(x) Know where to draw the line.

8-3-124. State shrub.

Artemisia tridentata wyomingensis, commonly known as Wyoming big sagebrush, is the state shrub of Wyoming.

8-3-125. Honor and remember flag.

(a) As a symbol of gratitude and respect for the ultimate sacrifice made by members of the United States military in service to our nation, the honor and remember flag, described under subsection (c) of this section, may be displayed at any state leased or owned building or office beneath the national flag on any day upon which the national flag is displayed. Any state agency, board or commission having authority for the supervision, control or management of a state leased or owned building or office is authorized to adopt rules relating to the display of the honor and remember flag at the state leased or owned building or office pursuant to this section.

(b) Any county, city, town or political subdivision of the state may display the honor and remember flag beneath the national flag on any day upon which the national flag is displayed.

(c) The honor and remember flag is the same proportions as the national flag. Its design contains a red field that occupies the top three-quarters (3/4) and a white field that occupies the bottom one-quarter (1/4) of the flag. In the center of the red field is a five (5) pointed gold star with the top point located near the top of the red field and the two (2) bottom points extending approximately one-quarter (1/4) of the way into the white field. The gold star has a white border surrounded by a blue border. Between the two (2) bottom points of the star is a folded national flag. At the top of the folded national flag, extending into the center of the gold star, is a stylized flame with one (1) blue part and two (2) red parts. In the white field below the flag, the words "Honor and Remember" are centered. The honor and remember flag is protected by United States copyright, registration number VA0001670661.

(d) All protocols used in displaying national flags shall be used in displaying the honor and remember flag. All penalties provided by the laws of this state for the misuse of the national flag are applicable to the honor and remember flag.

(e) Nothing in this section shall be construed to require the acquisition, erection and maintenance of a flagpole or the display of the honor and remember flag where a pole or display of the national flag does not already exist.

8-3-126. State amphibian.

Ambystoma mavortium melanostictum, commonly known as the blotched tiger salamander, is the state amphibian of Wyoming.

CHAPTER 4 - LEGAL TIME AND HOLIDAYS

8-4-101. Legal holidays; dismissal of schools.

(a) The following days are legal holidays in and for the state of Wyoming:

(i) New Year's Day, January 1;

(ii) Washington's and Lincoln's birthdays, to be observed on the third Monday in February;

(iii) Memorial Day, to be observed on the last Monday in May;

(iv) Independence Day, July 4;

(v) Labor Day, to be observed on the first Monday in September;

(vi) Repealed by Laws 1990, ch. 21, § 2.

(vii) Veterans Day, November 11;

(viii) Thanksgiving Day, to be observed on the fourth Thursday in November;

(ix) Christmas Day, December 25;

(x) Repealed by Laws 1983, ch. 180, § 1.

(xi) Upon declaration by the governor of this state, any date appointed or declared by the president of the United States as an occasion of national mourning, rejoicing or observance of national emergency;

(xii) Martin Luther King, Jr., Wyoming Equality Day, to be observed on the third Monday in January.

(b) If New Year's Day, Independence Day, Christmas Day or Veterans Day fall upon a Sunday, the Monday following is a legal holiday.

(c) On Washington's and Lincoln's birthdays, Veterans Day, Martin Luther King, Jr., Wyoming Equality Day and all days upon which general elections are held, the public schools of any

district shall not be dismissed except by order of the board of trustees of the district, but proper exercises may be held in the schools on these days to emphasize their significance and importance.

8-4-102. Arbor Day.

(a) The state forester shall promote the following activities to commemorate Arbor Day, the last Monday in April:

(i) A tree shall be planted on state grounds in a simple ceremony;

(ii) The planting of a seedling tree or some other act may be performed in an appropriate ceremony in the schools of Wyoming.

8-4-103. Wyoming Day.

(a) In recognition of the action of the Wyoming territorial governor on December 10, 1869, in approving the first law found anywhere in legislative history which extends the right of suffrage to women, December 10 of each year is designated as "Wyoming Day." The day shall be observed in the schools, clubs and similar groups by appropriate exercises commemorating the history of the territory and state and the lives of its pioneers, and by fostering in all ways the loyalty and good citizenship of its people.

(b) The governor, not later than December 1 of each year, shall issue a proclamation requesting the proper observance of "Wyoming Day" as outlined in subsection (a) of this section.

8-4-104. Nellie Tayloe Ross's birthday.

(a) In recognition of the services to the state of Wyoming of Nellie Tayloe Ross, the first woman governor of any state in the United States, Nellie Tayloe Ross's birthday, November 29, is designated a public holiday. The day shall be appropriately observed in the public schools of the state.

(b) This section, however, shall not be construed to affect commercial paper, the making or execution of agreements in writing or judicial proceedings, or to authorize schools, businesses or public offices to close.

8-4-105. Native American Day.

(a) In recognition of the North American Indian, the second Friday in May is designated as "Native American Day". The day shall be appropriately observed in the public schools of the state, by state and local government and by organizations within the state.

(b) The governor, not later than April 15 of each year, shall issue a proclamation requesting proper observance of "Native American Day".

(c) This section shall not affect commercial paper, the making or execution of written agreements or judicial proceedings, or authorize public schools, businesses or state and local government offices to close.

8-4-106. Pearl Harbor Remembrance Day.

(a) In recognition of the members of the armed forces who lost their lives and those who survived the attack on Pearl Harbor, territory of Hawaii on December 7, 1941, December 7 of each year is designated as "Pearl Harbor Remembrance Day". The day shall be appropriately observed in the public schools of the state.

(b) The governor, not later than September 1 of each year, shall issue a proclamation requesting proper observance of "Pearl Harbor Remembrance Day".

(c) This section shall not affect commercial paper, the making or execution of written agreements or judicial proceedings, or authorize public schools, businesses or state and local government offices to close.

8-4-107. Juneteenth holiday.

(a) In celebration of the end of slavery in the United States proclaimed by Major General Gordon Granger on June 19, 1865 more than two and one-half (2½) years after the Emancipation Proclamation was issued by President Abraham Lincoln, and in recognition of those who died and sacrificed to achieve the end of slavery, the Juneteenth holiday is established.

(b) The Juneteenth holiday shall be celebrated each year with appropriate activities on the third Saturday of June.

(c) This section shall not affect commercial paper, the making or execution of written agreements or judicial proceedings, or authorize public schools, business or state and local government offices to close.

8-4-108. Veterans Day.

(a) In recognition of the many Wyoming citizens who have served in the armed forces of this country, November 11 of each year is designated as "Veterans Day." The day shall be appropriately observed in the public schools of the state and by organizations within the state.

(b) The governor, not later than November 1 of each year, shall issue a proclamation requesting proper observance of Veterans Day and requesting military and veterans' organizations to work with the boards of all Wyoming school districts to conduct proper exercises in observation of the contributions and sacrifices of veterans.

8-4-109. Wyoming Veterans Welcome Home Day.

(a) In recognition of the members of the United States armed forces who served bravely and faithfully for the United States during the Vietnam War, and to all those members of the United States armed forces who were not properly thanked or welcomed home following their military service, March 30 of each year is designated as "Wyoming Veterans Welcome Home Day." The day shall be appropriately observed in the public schools of the state and by organizations within the state. Additionally, it is recommended that Wyoming communities host "Wyoming Veterans Welcome Home Day" celebrations to ensure those members of the United States armed forces can be properly thanked and welcomed home.

(b) The governor, not later than March 20 of each year, shall issue a proclamation requesting proper observance of Wyoming Veterans Welcome Home Day and requesting military and veterans' organizations to work with Wyoming school districts to observe the contributions and sacrifices of Vietnam veterans and other veterans.

(c) This section shall not affect commercial paper, the making or execution of written agreements or judicial proceedings, or authorize public schools, business or state and local government offices to close.

8-4-110. Agent Orange Health Awareness Month.

(a) In recognition of those who have been exposed to Agent Orange and as many as five (5) future generations who may also suffer from a number of deleterious health effects associated with the toxic dioxin in Agent Orange, and in recognition that because more than nineteen million (19,000,000) gallons of herbicide was sprayed throughout South Vietnam, with Agent Orange accounting for approximately eleven million (11,000,000) gallons, causing the United States department of veterans affairs to presume that all veterans who served in Vietnam were exposed, the month of August of each year is designated as "Agent Orange Health Awareness Month." The month may be appropriately observed in the public schools of the state and by organizations within the state. The legislature recommends that Wyoming communities host programs during Agent Orange Health Awareness Month to encourage all Vietnam veterans and their offspring who have not already done so to seek proper health screening and to educate the general population of Wyoming about the Vietnam War era, Agent Orange and the health effects of Agent Orange.

(b) The governor, not later than July 10 of each year, shall issue a proclamation requesting proper observance of Agent Orange Health Awareness Month and requesting healthcare, military and veterans' organizations to work with Wyoming school districts and communities to encourage health screenings and observe the month with appropriate activities and programs.

(c) The Wyoming veterans' commission, in conjunction with the United States department of veterans affairs, shall develop and publicize a campaign during the month of August to encourage Wyoming Vietnam veterans and their families to register with the United States department of veterans affairs Agent Orange registry health exam. The Wyoming veterans' commission may encourage Wyoming Vietnam veterans to schedule and take the Agent Orange registry health exam. The Wyoming veterans' commission shall also develop and publicize an outreach campaign to notify Wyoming Vietnam veterans of changes to the presumptive medical conditions associated with Agent Orange as recognized by the United States department of veterans affairs.

8-4-111. Purple Heart Day.

(a) In recognition of the purple heart as the oldest United States military decoration in present use, created as the badge of military merit in 1782 by General George Washington,

and in recognition that the purple heart is specifically awarded to members of the United States armed forces including Wyoming citizens who have been wounded or paid the ultimate sacrifice in combat, August 7 of each year is designated as "Purple Heart Day." The day shall be appropriately observed by state and local governments and by organizations within the state.

(b) The Wyoming veterans' commission shall work with military and veterans' organizations and Wyoming communities to observe the day with appropriate activities and programs.

(c) This section shall not affect commercial paper, the making or execution of written agreements or judicial proceedings, or authorize public schools, business or state and local government offices to close.

8-4-112. Estelle Reel Day.

(a) In recognition of Estelle Reel, the first woman elected and to hold the office of state superintendent of public instruction in Wyoming and the second woman elected and to hold a statewide office in the United States, January 7 of each year is designated as "Estelle Reel Day." The day shall be appropriately observed by state and local governments and may be observed in the public schools of the state and by organizations within the state.

(b) The governor shall, in advance of January 7 of each year, issue a proclamation requesting proper observance of "Estelle Reel Day."

(c) This section shall not affect commercial paper, the making or execution of agreements or judicial proceedings, or authorize schools, businesses or state and local government offices to close.

8-4-113. Wyoming Cowboy and Cowgirl Legacy Week.

(a) The third calendar week of September is declared to be "Wyoming Cowboy and Cowgirl Legacy Week".

(b) Wyomingites are encouraged to observe Wyoming Cowboy and Cowgirl Legacy Week with appropriate ceremonies and activities.

(c) The Wyoming department of education shall encourage schools and teachers to commemorate Wyoming Cowboy and Cowgirl

Legacy Week through appropriate activities, including study of the Code of the West and cowboy and cowgirl related history and literature.

(d) The University of Wyoming is encouraged to continue to promote and safeguard the cowboy and cowgirl as an emblematic symbol of Wyoming and instill students with knowledge of cowboy and cowgirl values.

8-4-114. Public lands day.

(a) In tribute to the importance of public lands in the state, to acknowledge the multiple use of public lands and in recognition of the value of public lands to the state's economy, open spaces, diversity of mineral, grazing and forestry resources, wildlife and recreational opportunities, the fourth Saturday in September of each year is designated as "public lands day" and appropriate observance may be held by the public and in all public schools of the state.

(b) Not later than September 1 of each year, the governor is authorized to issue a proclamation requesting the proper observance of "Public Lands Day."

(c) This section shall not affect commercial paper, the making or execution of written agreements or judicial proceedings, or authorize public schools, business or state and local government offices to close.

(d) As used in this section, "public lands" means all federal and state public lands. "Public lands" shall not include state trust lands managed for the benefit of Wyoming's public schools and institutions.

8-4-115. Mountain daylight time. {Note: Contingently effective, see effective date note.}

(a) The year-round observed time of the entire state of Wyoming and all of the state's political subdivisions is mountain daylight time. Wyoming exempts all areas of the state from mountain standard time.

(b) As used in this section:

(i) "Mountain daylight time" means the period during a year when mountain standard time is advanced one (1) hour in accordance with 15 U.S.C. § 260a;

(ii) "Mountain standard time" means the observed time assigned to the mountain time zone in 15 U.S.C. § 261.

8-4-116. Moon Landing Day.

(a) In recognition of American astronauts Neil Armstrong and Edwin "Buzz" Aldrin becoming the first humans to land and walk on the moon on July 20, 1969 and the men and women who aided the astronauts in landing on the moon and returning home safely, including Michael Collins who piloted the command module, July 20 of each year is designated as "Moon Landing Day." The day shall be appropriately observed by state and local government and by organizations within the state.

(b) The governor may, in advance of July 20 of each year, issue a proclamation requesting proper observance of "Moon Landing Day."

(c) This section shall not affect commercial paper, the making or execution of agreements or judicial proceedings, or authorize public schools, businesses or state and local government offices to close.

8-4-117. Wyoming Reads Day.

(a) In recognition of the citizens of Wyoming who are dedicated to the importance of early childhood literacy, the third Tuesday in May is designated as "Wyoming Reads Day." The day shall be appropriately observed in the public schools of the state, by state and local governments and by organizations within the state. The legislature recommends that Wyoming communities hold "Wyoming Reads Day" celebrations to advance the cause of childhood literacy and encourage early enthusiasm for reading.

(b) The governor shall, in advance of the third Tuesday in May of each year, issue a proclamation requesting proper observance of "Wyoming Reads Day."

(c) This section shall not affect commercial paper, the making or execution of agreements or judicial proceedings, or authorize public schools, businesses or state and local government offices to close.

8-4-118. Wyoming Wednesday.

(a) In celebration of the state of Wyoming and in an effort to bring unity to the state's communities, the second Wednesday of every month shall be known as "Wyoming Wednesday – Brown and Gold Day". Wyoming citizens may wear brown and gold in recognition of Wyoming Wednesday.

(b) The governor, not later than July 10, 2025, and not more than once each year thereafter in advance of a Wyoming Wednesday, shall issue a proclamation requesting proper observance of "Wyoming Wednesday – Brown and Gold Day" as outlined in subsection (a) of this section.

(c) This section shall not affect commercial paper, the making or execution of written agreements or judicial proceedings, or authorize public schools, businesses or state and local government offices to close.

CHAPTER 5 - STATUE AND REPLICA OF ESTHER MORRIS AND CHIEF WASHAKIE

8-5-101. Statue to be placed in capitol of United States.

The statue of Esther Morris, made pursuant to Section 1, Chapter 45, Session Laws of 1955, shall be placed in the capitol of the United States, in accordance with the provisions of section 187 of Title 40 of the United States Code Annotated, and shall there remain as commemorative of her distinguished service to the territory and the state.

8-5-102. Replica to be placed in state capital.

A replica of the statue specified in W.S. 8-5-101 shall be placed in the capital of Wyoming and shall there remain as commemorative of Esther Morris's distinguished service to the territory and the state.

8-5-103. Statue of Chief Washakie.

In the event a commission is appointed to obtain funding for the creation of a statue of Chief Washakie and upon completion of the statue, the statue of Chief Washakie shall be placed in the capitol of the United States, in accordance with the provisions of section 187 of Title 40 of the United States Code, and shall remain there as commemorative of Chief Washakie's historical significance to the territory and the state.

CHAPTER 6 - OFFICIAL LANGUAGE

8-6-101. English as official language of Wyoming.

(a) English shall be designated as the official language of Wyoming. Except as otherwise provided by law, no state agency or political subdivision of the state shall be required to provide any documents, information, literature or other written materials in any language other than English.

(b) A state agency or political subdivision or its officers or employees may act in a language other than the English language for any of the following purposes:

(i) To provide information orally to individuals in the course of delivering services to the general public;

(ii) To comply with federal law;

(iii) To protect the public health or safety;

(iv) To protect the rights of parties and witnesses in a civil or criminal action in a court or in an administrative proceeding;

(v) To provide instruction in foreign and Native American language courses;

(vi) To provide instruction designed to aid students with limited English proficiency so they can make a timely transition to use of the English language in the public schools;

(vii) To promote international commerce, trade or tourism;

(viii) To use terms of art or phrases from languages other than the English language in documents.

CHAPTER 7 - TRIBAL RELATIONS

ARTICLE 1 - TRIBAL IDENTIFICATION CARDS

8-7-101. Tribal identification cards.

An identification card issued by the governing body of the Eastern Shoshone Tribe or Northern Arapaho Tribe that includes the requirements of W.S. 31-8-102(a)(i) through (vi) and (ix) shall be considered a valid form of identification for all

purposes for which an identification card issued under W.S. 31-8-101 may be used.

8-7-102. Prohibited acts; penalties.

(a) No person shall:

(i) Possess any cancelled, fictitious, fraudulently altered or fraudulently obtained tribal identification card;

(ii) Lend his tribal identification card to any other person or knowingly permit its use by another;

(iii) Display or represent a tribal identification card not issued to him as being his card;

(iv) Photograph, photostat, duplicate or in any way reproduce a tribal identification card or facsimile thereof in such a manner that it could be mistaken for a valid identification card;

(v) Use a tribal identification card that was obtained by false swearing, fraud or false statement of any kind or in any form.

(b) Any person who violates any provision of subsection (a) of this section is guilty of a misdemeanor punishable by a fine of not more than seven hundred fifty dollars ($750.00), by imprisonment for not more than ninety (90) days, or both.